

KESHEL FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2364
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 36-2160, Arizona Revised Statutes, is amended to
3 read:

4 36-2160. Abortion-inducing drugs: violations:
5 classifications; definition

6 A. An abortion-inducing drug may be provided only by a qualified
7 physician in accordance with the requirements of this chapter.

8 B. A manufacturer, supplier or physician or any other person is
9 prohibited from providing an abortion-inducing drug via courier, delivery
10 or mail service.

11 C. This section does not apply to drugs that may be known to cause
12 an abortion but that are prescribed for other medical indications.

13 D. A PERSON WHO KNOWINGLY VIOLATES SUBSECTION B OF THIS SECTION BY
14 SELLING, FURNISHING, MAILING, SHIPPING, DELIVERING OR CAUSING TO BE
15 MAILED, SHIPPED OR DELIVERED AN ABORTION-INDUCING DRUG IS GUILTY OF A
16 CLASS 5 FELONY.

17 E. A LICENSED HEALTH CARE PROVIDER, PHARMACIST, MANUFACTURER,
18 SUPPLIER OR CARRIER WHO VIOLATES SUBSECTION B OF THIS SECTION WHILE ACTING
19 IN THE COURSE AND SCOPE OF THE PERSON'S EMPLOYMENT IS GUILTY OF A CLASS 4
20 FELONY.

21 F. A PERSON WHO KNOWINGLY ORDERS, SOLICITS, REQUESTS, RECEIVES OR
22 ATTEMPTS TO RECEIVE AN ABORTION-INDUCING DRUG BY COURIER, DELIVERY OR MAIL
23 SERVICE IN VIOLATION OF SUBSECTION B OF THIS SECTION IS GUILTY OF A CLASS
24 1 MISDEMEANOR.

25 [G. NOTWITHSTANDING ANY OTHER LAW, A CIVIL ACTION MAY NOT BE
26 BROUGHT UNDER THIS SECTION AGAINST A MOTOR CARRIER OR FREIGHT FORWARDER AS
27 DEFINED IN 49 UNITED STATES CODE SECTION 13102, AN AIR CARRIER AS DEFINED

1 IN 49 UNITED STATES CODE SECTION 40102 OR A THIRD-PARTY LOGISTICS PROVIDER
2 AS DEFINED BY 21 UNITED STATES CODES SECTION 360eee.]

3 ~~D.~~ [G.] [H.] For the purposes of this section, "abortion-inducing
4 drug" means a medicine or drug or any other substance used for a
5 medication abortion.

6 Enroll and engross to conform

7 Amend title to conform

RACHEL KESHEL

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